Citizenship	Number	Page
	07.01.01	1 of 4

Revision Date:
05/01/2022

Background:
The DRA of 2005 requires citizens of the United States to provide acceptable evidence of citizenship status and identity to receive full-scope Medi-Cal benefits. With the implementation of ACA, electronic verification of citizenship status through the federal data hub via the California Healthcare Eligibility Enrollment and Retention System (CalHEERS) is acceptable evidence of citizenship status and no other documentation is required.

DRA requirements were changed to allow issuance of full-scope Medi-Cal benefits to otherwise eligible U.S. citizen applicants during their Reasonable Opportunity Period (ROP) while they obtain the required citizenship and identity documents.

Note: Any reference to "U.S. citizens" should be interpreted as including both U.S. citizens and U.S. nationals for the purpose of this section.

Purpose:
This section has been revised to incorporate updates Medi-Cal eligibility for customers of the member sovereign states of the Compact of Free Association (COFA).

Policy:
A customer who is attesting to be a U.S. citizen and has their citizenship electronically verified is eligible to receive full-scope Medi-Cal benefits. See Medi-Cal Program Guide (MPG) 04.02.09 Statement of Citizenship/Non-Citizen Status for more information.

A. Definitions for U.S. Citizens:
Persons who fall within one of the following categories shall be considered U.S. citizens for Medi-Cal purposes.

Category	Description
U.S. Citizens/ Nationals	People born in one of the fifty United States or the District of Columbia (D.C.)
	People born in the following areas are treated the same as U.S. citizens for Medi-Cal purposes: • American Samoa • Swain's Island
Collectively Naturalized	People born in the following areas are treated the same as U.S. citizens for Medi-Cal purposes, if conditions specified in MPG 07.02 Appendix A are met. • Puerto Rico • Guam • U.S. Virgin Islands (St. John, St. Croix, and St. Thomas) • Northern Mariana Islands

Acquired Citizenship	People born in another country may have acquired citizenship if one or both of their parents were U.S. citizens at the time of birth, and the parent(s) met the requirements for transmitting citizenship. INS must act favorably on an application for Certificate of Citizenship, INS Form N-600, before acquired citizenship is approved. INS Form N-600 is not documentation of acquired citizenship as it merely shows the person has applied for acquired citizenship.
Derived Citizenship	A child may have derived citizenship if one or both child's parents become citizens through naturalization before the child's eighteenth birthday. The child would have to have been a legal permanent resident to obtain derived citizenship through their parent's naturalized citizenship.
Naturalized Citizenship	Naturalized U.S. citizens are persons who were born abroad and have since obtained U.S. citizenship through the naturalization process. Many conditions must be met before a person may obtain U.S. citizenship through this process, including: • Legal permanent resident status for at least five years; or • Marriage to a U.S. citizen for at least three years

B. Compact Free Association Act (COFA) of 1985:

In accordance with the COFA of 1985, citizens of the Federated States of Micronesia (FSM) and the Republic of the Marshall Islands (MIS) may live, work or study in the U.S. without restrictions. They may also qualify for full-scope Medi-Cal benefits if otherwise eligible. As proof that they are citizens of independent nations "freely associated" with the U.S., these "permanent non-immigrants" must present Arrival-Departure Records (Form I-94) annotated either CFA/FSM or CFA/MIS.

Effective December 27, 2020, the federal Consolidated Appropriation Act states that individuals from any of the member sovereign states of the COFA are considered Qualified Non-Citizens (QNC) who are exempt from the federal five-year bar on full-scope Medi-Cal eligibility. Customers are eligible for federal funded full-scope Medi-Cal retroactive to December 1, 2020, regardless of age or pregnancy status if they meet all other Medi-Cal eligibility requirements.

Verification

The most common immigration documents provided from COFA states are:

- I-94, Arrival-Departure Records annotated either:
  - CFA/FSM (Compact of Free Association/Federated States of Micronesia).
  - CFA/MIS (Compact of Free Association/Republic of the Marshall Islands).
  - PAL (Republic of Palau).
- I-766 Employment Authorization Document (EAD) with a category code of A08 (Citizen of Micronesia, The Marshall Islands, or Palau admitted as a nonimmigrant).

- An unexpired foreign passport may be used to request a Systematic Alien Verification for Entitlements (SAVE) report. Customers who have COFA immigration status will typically have of e of the following Code of Admissions (COA) codes in the SAVE response:
  - CFA/FSM.
  - CFA/MIS.
  - PAL.

Note: A SAVE response for a customer from any of the COFA states may return a COA code of "PI", which identifies persons from the Pacific Trust Territories. Customers with this COA may or may not be from a COFA state. In these cases, initiate additional SAVE verification steps to confirm whether the customer as a COFA immigration status. This may require that the county obtain additional information about the customer's immigration status to perform the "third step" save process.

Medi-Cal Eligibility Data System (MEDS) New Citizen/Alien Indicator Code
MEDS (INQE screen) Citizen/Alien Indicator code "4" has been created to identify customers from COFA states as QNCs not subject to the five-year bar, rather than, as lawfully present (not QNC). When the SAVE verification confirms a customer has COFA immigration status, send a transaction to MEDS to update the Citizen/Alien Indicator code to a "4".

C. American Indians Born in Canada
American Indians born in Canada have the right to freely enter and reside in the U.S. if they are at least one-half American Indian ancestry. These persons may qualify for full-scope Medi-Cal benefits if otherwise eligible. Spouses or children of Canadian-born Indians and individuals, whose membership in an Indian tribe or family is created by adoption, may not qualify for this special immigration status unless they are at least fifty percent American Indian ancestry.

Membership in this class may be established by presenting any of the following documents:

- Birth or baptismal certificates issued on a reservation
- Tribal records
- Letters from the Canadian Department of Indian Affairs
- School records

Note: In March 2003, the functions of the former Immigration and Naturalization Services (INS) transitioned into the Department of Homeland Security (DHS) as the U.S. Citizenship and Immigration Services (USCIS).

Program Impacts:
No Impact to other programs

Automation: Refer to Medi-Cal Memo 21-24 for guidance.

References:
ACWDLs 90-67, 07-12, 09-27, 17-01, 21-13, 21-33

Sunset Date:
This policy will be reviewed for continuance on or by 05/31/2025

Approval for Release:

5-3-22

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
05/01/2022

Background:
An otherwise eligible customer who declares to be a U.S. citizen and who requests Medi-Cal is required to provide acceptable documentation of citizenship AND identity, only if citizenship status cannot be electronically verified. The requirement does not have to be met at the time of application for the applicant to receive full-scope benefits. This section was updated with directions for when children and young adults up to 26 years of age and adults aged 50 and older fail to provide citizenship or identity documents.

Purpose
This section provides guidance for verifying Citizenship and Identity.

Policy:
A customer attesting to be a U.S. citizen (see MPG 04.02.09) and has their citizenship electronically verified is eligible to receive full-scope Medi-Cal benefits.

A. Verification Requirements for Applicants
Issuance of full-scope or limited-scope benefits is based on the following circumstances at application:

If an otherwise eligible U.S. citizen applicant…	**Then…**
has CIT/ID status electronically verified	issue full-scope benefits
provides the required CIT/ID documents	
is attempting to gather the required CIT/ID documents	• establish a ROP • issue full-scope benefits during the ROP • set case alert to review case at the end of the ROP
indicates that they will not present the required CIT/ID documents	issue limited scope benefits the first of the following month provided that the ten-day notice requirement is met **Exception:** Grant full-scope benefits to children and young adults up to the age of 26 and adults age of 50 and older.
has not met the DRA CIT/ID requirements at the end of the ROP	reduce from full-scope to limited-scope with timely notice effective the first of the future month **Exception:** Grant full-scope benefits to children and young adults up to the age of 26 and adults age of 50 and older.

Verification of citizenship AND identity is a one-time activity in that once the verification is requested and provided, it may not be requested again. This would apply to any customer who:
- Moves from one county to another.

- Has a break in aid.
- Presents evidence that they have met the citizenship and identity requirements in another state's Medicaid program.

Non-citizens are not subject to the citizenship and identity verification requirements specified under DRA. An otherwise eligible non-citizen continues to be evaluated for Medi-Cal using existing procedures regarding acceptable evidence of non-citizen status and identity as specified in MPG 04.07 and 07.03A and 07.03B.

B. Exemption from Requirements

Medi-Cal customers in any of the following groups are exempt from the citizenship and identity verification requirements as long as they remain recipients of these programs:

- Current Supplemental Security Income (SSI) - Title XVI beneficiaries.
- Current Social Security Disability Insurance (SSDI)-Title II beneficiaries.
- Current Medicare - Title XVIII beneficiaries (Parts A, B, C, or D).
- Current Social Security Retirement and Survivors Insurance (RSI) Title II beneficiaries who receive those benefits based on their own disability.
- Minor Consent Medi-Cal applicants and beneficiaries (Aid Code 7M, 7N, 7P, 7R).
- Children who are recipients of Title IV-E or Title IV-B foster care assistance, Foster Care 45 aid code, adoptions assistance, Kinship Guardianship Assistance Payments (KIN-GAP).
- Children who are in receipt of Former Foster Youth (FFY) 4M aid code.
- Customers who are receiving Medi-Cal Dialysis Only and Dialysis Supplement Program (Aid Code 71).
- Customers who are receiving Total Parenteral Nutrition (Aid Code 73).
- Customers Indigent Long-Term Care (Aid Code 53).

EXCEPTIONS:

The following groups are exempt from the citizenship and identity verification requirements indefinitely.

- Deemed eligible infants who are born in the U.S. and are therefore citizens (includes children born to non-citizen mothers whose delivery was covered by Medi-Cal).
- Children covered under the Abandoned Baby Program who are born in the U.S. and have no documentation.

<u>Change in Citizenship Status</u>

Medi-Cal beneficiaries who report a change in their citizenship status, such as a legal permanent resident who became a U.S. Citizen, are required to provide acceptable documentation of citizenship AND identity only after *ex parte* review of all information available, including databases and citizenship status cannot be electronically verified. These beneficiaries, if otherwise eligible, continue to receive the same level of benefits if they are making a good faith effort to provide the required CIT/ID documents.

When a beneficiary reports a change in their citizenship status at annual redetermination, certify the redetermination as complete with no reduction in benefits if both of the following conditions are met:

- The only outstanding verifications are for citizenship and/or identity.

- The beneficiary is otherwise eligible and is making a good faith effort to provide the required documents.

C. Presumptive Eligibility (PE)/Accelerated Enrollment (AE) for Children
The requirement to provide verifications of citizenship and identity does not apply to customers at the time presumptive eligibility or accelerated enrollment is established. These programs include:
- Presumptive Eligibility for Pregnant Women.
- Child Health and Disability Prevention (CHDP) Gateway.
- Accelerated Enrollment at the Single Point of Entry.
- School Lunch Program.
- Presumptive MC eligibility under the Breast and Cervical Cancer Treatment Program (BCCTP).

Customers receiving Medi-Cal coverage under one of the above PE or AE program will be placed in the appropriate aid code for on-going eligibility as soon as it is determined that they are otherwise eligible. Issuance of full-scope or limited-scope aid code is based on the customer's circumstances at application as stated above, MPG 7.2.2B.

Note: Presumptive disability relates to one Medi-Cal eligibility requirement and is not the same as Presumptive Eligibility. Customers who are presumptively disabled are not exempt from the DRA citizenship/identity verification requirements.

D. CalWORKs
The CalWORKs citizenship and identity documentation requirements fulfill the DRA requirements. Therefore, CalWORKs recipients would have met the citizenship and identity verification requirements from the beginning date of their CalWORKs aid and will not be required to provide documentation of their citizenship and identity for on-going Medi-Cal eligibility. This would include customers discontinued from CalWORKs and transitioned to either Transitional Medi-Cal (TMC), Edwards v Kizer (Aid Code 38) or any other Medi-Cal program.

NOTE: CalWORKs beneficiaries who receive CalWORKs during the initial 90 days in which they must provide the documents and then lose CalWORKs eligibility for failure to provide the required citizenship document will be subject to electronic verification. If citizenship status cannot be electronically verified, then the beneficiary will:
- Be required to provide documentation of citizenship prior to their redetermination date.
- Continue to receive full-scope benefits during their ROP if otherwise eligible.

Program Impacts:
No Impact to other programs

References:
ACWDLs 08-54, 09-27, and 19-23, 21-13
DRA Q&A DHCS Website

Sunset Date:
This policy will be reviewed for continuance on or by 05/31/2025.

Approval for Release:

5-3-22

Rick Wanne, Director
Self-Sufficiency Services

Verification Standards for Citizenship and Identity (CIT/ID)	Number	Page
	07.01.03	1 of 7

Revision Date:
05/01/2022

Background:
On February 8, 2006, the Deficit Reduction Act of 2005 (DRA) was signed into Federal law. This act included new regulations requiring that all U.S. Citizen and U.S. National Medi-Cal applicants or beneficiaries provide evidence of satisfactory immigration status (SIS) and identity.

Purpose:
The purpose of this section is to provide guidance on verification standards for citizenship and identity as well as provide an overview of acceptable verifications when documentation is submitted by an individual. See Medi-Cal Program Guide (MPG) Section 04.07.13 Request for Citizenship/Identity Verification Required Under DRA 2005 for guidance on completing an ex parte review prior to requesting documentation from a customer.

Policy:
Medi-Cal customers who are citizens of the United States are required to verify their citizenship and identity. Customers who claim SIS are required to verify their immigration status.

A. Document Standards

Citizenship

Verification of U.S. citizenship must meet the following conditions:

- Show a U.S. place of birth or that the individual is a U.S. citizen or national; **AND**
- Fall within those identified in Desk Aid 119.

Identity

Verification of identity must meet the following conditions:

- Contain sufficient identifying information that relates to the person named on the document. This may include a combination of any of the following:
    - Photograph of the customer
    - Name
    - Age
    - Gender
    - Height
    - Weight
    - Eye Color

Expired documents are acceptable as evidence of identity. Refer to MPG 07.02.04E regarding special identity rules for children under 18 years old.

Note: While the customer has been informed of the requirement to provide the most reliable documents they have, Human Services Specialists (HSSs) must accept and consider citizenship or identity verification requirements to be met if the document provided falls within those identified in Desk Aid 119.

B. Acceptable Documentation for Citizenship and Identity
Federal guidelines provide a ranking of acceptable evidence for documenting citizenship and identity, ranging from the most reliable (primary) to least reliable. Department of Health Care Services (DHCS) form 0001 and 0002 inform customers of the requirement to provide the most reliable documents they have.

Note: While the customer has been informed of the requirement to provide the most reliable documents they have, HSSs must accept and consider citizenship or identity verification requirements to be met if the document provided falls within those identified in Desk Aid 119 Acceptable Verifications of Citizenship and Desk Aid 120 Acceptable Verifications of Identity.

C. Documents Establishing both U.S. Citizenship and Identity
Primary evidence of citizenship and identity are documents of the highest reliability and establish an individual's U.S. citizen status. The following documents shall be used to satisfy both U.S. citizenship **and** identity verification requirements:

- U.S Passport issued without limitation, current or expired.
  - Examples include a U.S. Passport Book or a U.S. Passport Card).
- Certificate of Naturalization (Department of Homeland Security (DHS) form N-550 or N-570).
- Certificate of Citizenship (DHS Form N-560 or N-561).

Note: Customers born outside of the U.S. who were not citizens at birth must submit one of the primary pieces of evidence listed above if their citizenship is unable to be verified using the ex parte process as outlined on MPG 04.07.13.

D. Documents Establishing U.S. Citizenship Only
When primary evidence of citizenship is unavailable, any one of the following documents can be used as evidence of citizenship.

Note: When a customer provides any one of these documents, separate evidence of identity is required **except** those who are verified via SSA CIT/ID verification match.

<u>Secondary Level Evidence of Citizenship</u>

- U.S. Public Birth Certificate issued before the age of five and showing a birth in:
  - One of the 50 United States.
  - District of Columbia.
  - American Samoa.
  - Swain's Island.
  - Puerto Rico with a Date of Birth (DOB) on or after **January 1, 1941**.
  - U.S. Virgin Islands with a DOB on or after **January 17, 2017**.
  - Northern Marian Islands (NMI) with a DOB on or after **November 4, 1986**, NMI local time.
  - Guam with a DOB on or after **April 10, 1899**.
- DHCS Birth Record Data Match if born in California.
- Social Security Administration (SSA) Citizenship and Identity Verification Match:

  - A successful match means that the individual's citizenship and identity were both verified. No additional documents will be required to meet the DRA CIT/ID verification requirements.
- Certification of Report of Birth (Form DS-1350).
- Certification of Birth Issued by the Department of State (Form FS-545 or DS-1350).
- Report of Birth Abroad of a U.S. Citizen (FS-240).
- U.S. Citizen I.D. Card (Form I-797 or I-179).
- American Indian Card (I-872).
- Northern Mariana Identification Card (I-873).
- Final Adoption Decree showing a U.S. birthplace.
- Evidence of civil service employment by the U.S. Government showing employment before **June 1, 1976**.
- U.S. Military Record showing a U.S. birthplace.
- Systematic Alien Verification for Entitlements (SAVE).
  - HSSs can generate a SAVE to verify the status of immigrants who claim to be U.S. citizens if they have an A-number or an I-94.
- Proof of Adoption under the Child Citizenship Act provided that certain conditions are met. Refer to Desk Aid 119 for a list of conditions.

Note: Children born in the U.S. to foreign sovereigns or diplomatic officers are **not** U.S. Citizens unless citizenship status was acquired through the derived or naturalized citizenship process.

Fourth Level Evidence of Citizenship

- Federal or State census recording showing U.S. citizenship or a U.S. birthplace and the customer's age.
  - Generally, for individuals born between the years of 1900 to 1950.
- Roll of Alaska Natives maintained by the Bureau of Indian Affairs.
- Written Affidavit if all the following conditions are met:
  - No other evidence of citizenship can be obtained.
  - The affidavit(s) be signed under penalty of perjury by at least two individuals who have personal knowledge of the event(s) establishing the customer's claim of citizenship.
  - At least one of the individuals providing an affidavit must not be related to the customer who is the subject of the affidavit.
  - Individual(s) making the affidavit must be able to prove their own citizenship and identity for the affidavit to be accepted.
  - A second affidavit from the customer or other knowledgeable person explaining why the documentary evidence does not exist or cannot be readily obtained is also required.
  - The customer and affiants must provide acceptable evidence of identity as specified in Desk Aid 120.

Note: Affidavits of citizenship may be used for naturalized citizens. Affidavits do not need to be notarized and may not be used for both citizenship and identity.

The following documents may also be used as fourth level evidence of citizenship if they show a U.S. birthplace and were created at least 5 years before the initial MC application date, unless the applicant is under the age of 5:

- Seneca Indian Tribal Census Record.
- Bureau of Indian Affairs tribal census record of the Navaho Indians.
- U.S. State Vital Statistics official notification of birth registration.
- Amended U.S. public birth record which was amended more than 5 years after the person's birth.
- Statement signed by the physician or midwife who was present at the time of birth.
- Institutional admission papers from a nursing facility, skilled care facility, or other institution.
- Medical record **excluding** immunization records.
    - May be from a clinic, doctor, or hospital.

E. U.S. Citizenship for Collectively Naturalized Individuals

Some individuals are "collectively naturalized" based on when and where they were born. People who provide acceptable evidence of citizenship and identity that meets the criteria below for collective naturalization are U.S. citizens.

Country or Territory of Origin	Citizenship Documentation
Puerto Rico	• Evidence of birth in Puerto Rico on or after April 11, 1999, along with the individual's statement indicating that they were residing in the U.S., a possession, or Puerto Rico on January 13, 1941. • Evidence that the individual was a Puerto Rican citizen along with the individual's statement indicating that they were residing in Puerto Rico on March 1, 1971, and that they did not take an oath of allegiance to Spain.
U.S. Virgin Islands • St. John • St. Croix • St. Thomas	• Evidence of birth in the U.S. Virgin Islands and the individual's statement of residence in the U.S., a U.S. possession, or the U.S. Virgin Islands on February 25, 1927. • The individual's statement indicating residence in the U.S. Virgin Islands as a Danish citizen on January 17, 1917, and residence in the U.S., a U.S. possession, or the U.S. Virgin Islands on February 25, 1927, and that they did not make a declaration to maintain Danish citizenship. • Evidence of birth in the U.S. Virgin Islands and the individual's statement indicating residence in the U.S., a U.S. possession, territory, or the Canal Zone on January 28, 1932.

Northern Mariana Islands (NMI) **Note:** If a person entered the NMI as a nonimmigrant and lived int eh NMI since January 1, 1974, this does not constitute continuous domicile and the individual is not a U.S. citizen.	• Evidence of birth in the NMI, Trust Territory of the Pacific Islands (TTPI) citizenship, residence in the NMI, the U.S., or a U.S. territory or possession on November 3, 1986, NMI local time, and the individual's statement that they did not owe allegiance to a foreign state on November 4, 1986, NMI local time. • Evidence of TTPI citizenship, continuous residence in the NMI since November 3, 1981, NMI local time, voter registration prior to January 1, 1975, and the individual's statement that they did not owe allegiance to a foreign state on November 4, 1986, NMI local time. • Evidence of continuous domicile in the NMI since before January 1, 1974, and the individual's statement that they did not owe allegiance to a foreign state on November 4, 1986, NMI local time.
Guam	Must show evidence of birth in Guam on or after April 10, 1899.

F. Documents Establishing Identity of a U.S. Citizen

MC customers must also provide acceptable identity when:

- Primary evidence is not available. See MPG 07.02.03C for descriptions of primary evidence.
- Evidence from the second through fourth levels is presented. See MPG 07.02.03D for descriptions of secondary through fourth level document descriptions.

Acceptable identity documents must include any one of the following:

- Certificate of Degree of Indian Blood, or U.S. American Indian/Alaska Native tribal document.
- Driver's License issued by a State or Territory.
- School identification card or draft record.
- U.S. military identification card with a photograph of the individual.
- Identification card issued by the Federal, State, or local government with the same identifying information included on driver's license.
- U.S. Military dependent's identification card.
- Native American Tribal document.
- U.S. Coast Guard Merchant Mariner card.
- A U.S. Passport, current or expired, even if issued with limitation.
- Affidavits of identity for disabled individuals in an institutional care facility signed by a residential care facility director or administrator on behalf of an institutionalized individual in the facility.
- Three or more corroborating identity documents, provided that the documents were not used to establish citizenship and the individual provided a second or third level evidence of citizenship.

- Documents submitted must at a minimum include the individual's name or any other identifying information.

Note: Expired identity documents are acceptable proof of identity.

G. Special Identity Rules for Children Under 18 Years Old

The following documents may be used to establish the identity of a child under 16 years old:

- Medical records such as clinical records, doctor records, or hospital records.
- School, nursery, or daycare records including report cards.
  - Documents must be verified by the HSS with the issuing entity. Phone contact with the issuing entity is sufficient verification if contact is documented in case comments.
- An affidavit signed under penalty of perjury by a parent, guardian, or caretaker relative stating the date and birthplace of the child when no other identity documents are available.
  - The affidavit does **not** have to be notarized.
  - May be provided by a non-citizen parent or guardian.
  - The signature on the application signed under penalty of perjury stating the date and place of birth of a child under 16 can serve as an affidavit if no other acceptable evidence of identity is provided at the time of application or redetermination.
    - The National School Lunch Program (NSLP) Application is not equivalent to an application for MC and therefore cannot be used as an affidavit to establish identity.
- For children under 18, form DHCS 0009 Affidavit of Identity for U.S. Citizen or National Children Under 18 may also be used when the child cannot obtain a school ID card or does not have a Driver's License.

Note: An affidavit cannot be used to establish identity of a child if an affidavit was already provided to verify citizenship.

H. Other Citizenship Documents.

When an individual is otherwise eligible but is unable to provide verification of citizenship as specified in Desk Aid 119, the individual may provide a copy of a document which the HSS believes constitutes reliable documentation of U.S. citizenship. HSS will complete the following:

- Enter a detailed case comment and include the following information:
  - Type of document received.
  - Why the HSS believes the document is acceptable verification of citizenship.
- Refer the case to their supervisor to be elevated to a Program Specialist along with a copy of the document in question.

The Program Specialist will evaluate the document for reliability, log the referral, and forward all documents to DHCS for a determination. If DHCS approves the use of the document not previously approved per Desk Aid 119, DHCS will report the citizenship information directly to the Medi-Cal Eligibility Data System (MEDS) for the individual by modifying MEDS **INQE** to accept the new document type as "Other Acceptable Document Approved by DHCS" and the HSS will be notified of document approval.

Only DHCS can report other documents to MEDS and documents are evaluated on a case-by-case basis. Approval of a new document type does not indicate approval for any individual other than the one evaluated and approved by DHCS.

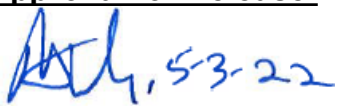
Note: Customers who are otherwise eligible and who submit other evidence of citizenship will receive full-scope benefits until DHCS has completed the review and determination. Otherwise, eligible individuals who report a change in their citizenship status, will continue to receive the same level of benefits until DHCS has completed the review and determination of the citizenship document.

Program Impacts:
No other program impacts.

References:
ACWDL 07-12, 08-03, 08-23, 08-19, 08-54, 09-27, 09-65

Sunset Date:
This policy will be reviewed for continuance on or by 05/31/2025

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services

Automated Birth Record Matches	Number	Page
	07.01.04	1 of 3

Revision Date:
05/01/2022

Background:
Individuals who are born in California and who are not exempt from the citizenship/identity (CIT/ID) verification requirements may have their citizenship verified by an automated data match against state birth records. The data match compares the California birth records against information in the Medi-Cal Eligibility Data System (MEDS), the Statewide Client Index (SCI), and California Work Opportunity and Responsibility to Kids Information Network (CalWIN).

Purpose:
The purpose of this section is to provide staff with guidance on requesting and processing automated birth record matches. This section has been reformatted as part of a sunset review.

Policy:
A request for a birth record match can be initiated at the State or County levels. When a successful match occurs, citizenship information is automatically populated to the MEDS INQE screen for the matched individual. Electronic birth records are considered secondary level evidence of citizenship. See Medi-Cal Program Guide (MPG) 07.02.03D for more information on levels of evidence for citizenship.

A. State-Run Matches
Automated birth record matches are performed by the Department of Health Care Services (DHCS) for existing MC applicants or beneficiaries already known to MEDS. Customers for whom a match was found are not required to provide evidence of citizenship however they are still required to provide evidence of identity.

B. Requesting a Birth Record Match
When a customer's citizenship cannot be verified using the Federal Hub via the California Healthcare Eligibility, Enrollment, and Retention System (CalHEERS), a birth record match may be requested to attempt to verify the customer's citizenship.

Submitting a request in CalWIN
Human Services Specialists (HSSs) may request a birth record match in CalWIN by submitting an AP19 Transaction. See MPG 07.02.Appendix D for guidance on submitting a birth record match request via CalWIN.

Submitting a manual request
Staff may submit a manual request for a birth records match by completing form 14-28 and submitting it to the office MEDS operator. The following information must be included in the request:
- Individual's birth name.
- Date of birth.
- City and/or County of birth.
- Mother's maiden name (optional).
- Father's name (optional).

Once a response is received, MEDS alerts will be generated when:

- An acceptable match has been found.
- An acceptable match was not found, and other evidence of citizenship is required.

C. Processing Matched Birth Records

When a valid birth record match is found, the HSS must mail form DHCS 0006 Proof of Citizenship or Identity Needed for Medi-Cal Applicants and Beneficiaries Who Are U.S. Citizens or Nationals to inform the individual of the result and whether verification of identity is still required.

Note: Verification of identity is still required unless the valid birth record match is for a child under 16 years of age. For additional information on verifying identity of an individual under 18 years of age, see MPG 07.02.03F Special Identity Rules for Children Under 18 years Old.

D. Processing Unmatched Records

When a valid birth record match is **not** found, HSS must inform the customer born in California of the result and provide the following forms:

- DHCS 0006: Proof of Citizenship or Identity Needed for Medi-Cal Applicants and Beneficiaries Who Are U.S. Citizens or Nationals.
    - If boxes 3, 4, or 5 are checked on form DHCS 0006, HSS must also provide form DHCS 0004 Request for California Birth Record.

Upon receiving additional information from the customer, HSS must submit a new birth record match request.

Note: Form DHCS 0004 may be completed telephonically with the customer. If an HSS can complete the form over the phone with the customer, the DHCS 0004 does not need to be mailed to the customer when mailing form DHCS 0006.

E. Validating Questionable Copies of California Birth Certificates

When a customer presents a questionable copy of a California birth certificate, HSS may use the information contained in the copy to request a birth record match.

Program Impacts:

No other program impacts.

References:

ACWDLs 07-12 and 08-03

Sunset Date:

This policy will be reviewed for continuance on or by 05/31/2025

Approval for Release:

5-3-22

Rick Wanne, Director
Self-Sufficiency Services

Revision Date:
05/01/2022

Background:
Effective January 4, 2010, customers who are subject to the Deficit Reduction Act (DRA) citizenship and identity verification requirements may have their citizenship and identity verified through the automated Social Security Administration (SSA) Citizenship/Identity (CIT/ID) verification match. A successful SSA CIT/ID verification match indicates that the customer's citizenship and identity have been verified fulfilling DRA CIT/ID verification requirements. SSA CIT/ID verification match is considered secondary level evidence of citizenship and identity.

Purpose:
The purpose of this section is to provide guidance regarding the use of SSA CIT/ID verification matches to confirm citizenship and identity when completing an *ex parte* review for a customer who has not met DRA CIT/ID verification requirements. This section has been revised as part of a sunset review.

Policy:
As part of the *ex parte* review process, Human Services Specialists (HSSs) must attempt to verify a customer's citizenship and identity through the SSA CIT/ID verification match before requesting documents from the customer. See Medi-Cal Program Guide (MPG) section 04.07.11 for more information on completing the *ex parte* process.

A. Overview of SSA CIT/ID Verification Match
An automated SSA CIT/ID verification match is performed once a customer's social security number (SSN) is validated by SSA daily as part of the Medi-Cal Eligibility Data System (MEDS) SSN validation process and the SSN belongs to a customer who has not met the DRA requirements or who has provided third or fourth level citizenship documents.

Once the SSN validation process is complete, if there is a successful SSA CIT/ID match, verification will display on MEDS within two business days from when SSA receives the data from MEDS. Results will be displayed in MEDs in one of the following ways:

- A new DRA document type (2Z) will populate in the MEDS INQE screen for customers whose citizenship and identity are verified by the SSA.
- MEDS will generate additional alerts.

Note: Having a validated SSN does **not** guarantee that citizenship or identity would be verified through SSA. It is possible that in some cases, SSA may not be able to verify citizenship or identity based on information in their database.

B. Who is Subject to Verification Match?
The SSA CIT/ID verification match is performed on customers who meet one of the following criteria:

- Declared a U.S. Citizen or National status.
- Has an SSN that has been validated by SSA through the daily MEDS SSN validation process and has not met the DRA CIT/ID verification requirement or provided a 3rd or 4th level of evidence for citizenship.

It is possible for MEDS to request a SSA CIT/ID verification match on a customer who is exempt from DRA requirements. No further action is needed by either the customer or the HSS unless the customer loses their DRA exemption status. The SSA CIT/ID verification match will not be performed for customers who have met the DRA verification requirements by submitting a secondary level of evidence document.

C. Triggering a Verification Match

For customers who fall within the criteria outlined on MPG 07.02.05B, MEDS will automatically request a SSA CIT/ID verification match when one of the following conditions are met:

- A new SSN is reported.
- A key data change, such as a change in name, SSN, or date of birth, is made to an existing unvalidated SSN.
- There has been no prior SSA CIT/ID verification match result for the SSN provided.

D. Notification of Match Results

HSSs will be notified of SSA CIT/ID verification match results through MEDS alerts. MEDS alerts 9044 through 9054 are generated based on whether the customer's citizenship and identity are verified through SSA. Below is a description of each alert, message, and action needed if any.

Alert Number	Message	Action Needed
9044	SSA Citizenship Verified Via SSA Data Match, Posted to MEDS	• Confirms citizenship is verified through SSA. • No further documentation is needed from the customer to comply with DRA requirements.
9045	SSA Citizenship Verified, Updated to MEDS as Higher Status	• SSA CIT/ID verification match supersedes lower-level documentation. • No further documentation is needed from the customer to comply with DRA requirements.
9046	Not Applicable	This alert is currently suppressed from distribution.
9047	SSA Identity Verified Via SSA Data Match, Posted to MEDS	• Identity is verified through SSA. • No further documentation is needed from the customer to comply with DRA requirements.
9048	SSA Identity Verified, Updated to MEDS as Higher Status	• SSA CIT/ID verification match supersedes lower-level documentation. • No further documentation is needed from the customer to comply with DRA requirements.
9049	Not Applicable	This alert is currently suppressed from distribution.
9050	Citizenship/Identity Not Verified Via SSA Data Match	• Refer to 07.02.05I for detailed instructions.
9051	SSA Did Not Attempt Citizenship/Identity Data Match	• Refer to 07.02.05I for detailed instructions.

9052	Citizen Status Changed to Non-Citizen While CIT Ver Pending	• Refer to 07.02.05I for detailed instructions.
9053	Not Applicable	This alert is currently not in use.
9050	Citizenship/Identity Not Verified Via SSA Data Match	• Refer to 07.02.05I for detailed instructions.

E. Impact to MEDS INQE Screen

A successful SSA CIT/ID verification match may trigger updates to the MEDS INQE screen based on the customer's circumstances.

If the non-exempt customer…	**Then a successful SSA CIT/ID verification match will…**
Has submitted primary or secondary level CIT/ID documents,	Not change the existing values that are on the MEDS INQE screen.
Previously submitted level 3 or 4 CIT/ID documents,	The MEDS INQE screen will update the following fields with the corresponding values:
Has not met the DRA CIT/ID verification requirement,	

Field	**Value**
Citizenship-Doc-Type	2Z
Identity-Doc-Type	2Z
Citizenship-Doc-Source	SS
Identity-Doc-Source	SS

Note: Once a customer's citizenship and identity are verified by SSA and the MEDS INQE screen has been updated as shown on the table above, the citizenship/identity document type may only be updated to a higher level of verification.

For unsuccessful matches, no changes will be made to the MEDS INQE screen and any existing DRA document type code and source in the citizenship and identity fields will remain unchanged.

F. Processing a Successful Match

When a customer's citizenship and identity are verified through the SSA CIT/ID verification match, the customer is no longer required to provide documents to meet the DRA requirements and the customer will be eligible for full-scope MC benefits if otherwise eligible.

For customers who are **not** exempt from the DRA requirement and their citizenship and identity are verified through SSA, the HSS will update the DRA tab located in the "Collect Individual Demographics Detail" screen as follows:

Field	Entry
DRA US Citizen (Y/N)	• Select "Yes" from the dropdown menu. • Mark the verification as received. • Select source "Citizenship is verified by the SSA" from the dropdown.
DRA Identification (Y/N)	• Select "Yes" from the dropdown menu. • Mark the verification as received. • Select source "Citizenship is verified by the SSA" from the dropdown.

Processing an Incorrect Successful Match

When a successful match is incorrect, HSS must update MEDS by completing the following steps:

1) Submit form HHSA 14-28 to the office MEDS operator requesting to remove the citizenship and identity information as well as remove the SSN validation code.
2) Update CalWIN with the correct information.
    a. Information needing to be updated may be the customer's SSN, name, date of birth, or citizen/non-citizen indicator.

When a Successful Match is Removed

SSA CIT/ID verification match is dependent on a validated SSN. Removal of the SSN validation status will also result in the removal of the SSA CIT/ID verification status. When the SSA CIT/ID verification status is removed, the MEDS INQE window will be updated to reflect the following:

Field	From	To
Citizenship-Doc-Type	2Z	9S
Identity-Doc-Type	2Z	9S
Citizenship-Doc-Source	SS	-
Identity-Doc-Source	SS	-

Although removal of the SSA CIT/ID verification status will not trigger a reduction of benefits in MEDS however the customer would be subject to the DRA requirements if they do not meet the DRA exemption criteria as outlined in MPG 07.02.02B.

HSSs will be notified of the SSA CIT/ID verification status removal via MEDS alert 9054. Upon receiving MEDS alert 9054, the HSS will take the following actions:

Step	Action
1	Review and determine if the customer is exempt from the DRA requirement. **If the customer is… / Then…** exempt, → no further action is needed. not exempt, → proceed to Step 2.

<table>
<tr><td>2</td><td>Review and determine if the customer previously provided acceptable DRA documents.

<table>
<tr><th>If the customer has…</th><th>Then…</th></tr>
<tr><td>Previously provided acceptable DRA documentation,</td><td>• Update CalWIN by selecting the type of document that was previously provided as verification source.
• CalWIN will send a transaction to update MEDS INQE screen.</td></tr>
<tr><td>Not met the DRA requirement,</td><td>Proceed to Step 3.</td></tr>
</table>
</td></tr>
<tr><td>3</td><td>Review and determine if the customer’s record (SSN, name, DOB) needs to be updated.

<table>
<tr><th>If the record…</th><th>Then…</th></tr>
<tr><td>Needs to be updated,</td><td>• Update CalWIN.
• CalWIN will send transaction to MEDS.
• SSA CIT/ID verification match will be requested by MEDS if required triggering condition is present.
• Wait two days for the SSN validation process and SSA CIT/ID verification match to repeat.
• Review the result and follow the procedures below for processing successful or unsuccessful matches.</td></tr>
<tr><td>Does not need to be updated,</td><td>Proceed to Step 3.</td></tr>
</table>
</td></tr>
<tr><td>4</td><td>Request customer to provide the required DRA documents using procedures found on MPG 4.07.13C</td></tr>
</table>

G. Processing Unsuccessful Matches

An unsuccessful match, or a mismatch, occurs when SSA is unable to verify a customer’s citizenship and identity. When an unsuccessful match occurs, the customer is still required to meet the DRA citizenship and identity verification requirements. Before attempting to resolve the mismatch, HSSs must verify that the customer is not exempt from or has not yet complied with the DRA CIT/ID verification requirements as follows:

If the customer is…	And they have…	Then…
Exempt from DRA,		No further action is needed unless the customer loses their exemption status.
Not Exempt from DRA,	Already provided acceptable DRA documentation,	• Update CalWIN with the documentation provided.

		• CalWIN will send a transaction to MEDS and update the MEDS INQE screen.
Not exempt from DRA,	Met the DRA requirement via birth record match,	Updated CalWIN with the appropriate entries.
Not exempt from DRA,	not met the DRA requirement,	Follow the procedures outlined in 07.05.05I when resolving MEDS alerts associated with mismatches.

H. Reason(s) for Possible Mismatches

Various factors may contribute to mismatches where citizenship and identity of a customer cannot be verified through the SSA CIT/ID verification matching process. Contributing factors include the following:

- Inaccurate reporting of a customer's SSN, full name (first, middle, and last name), or the date of birth associated with the reported SSN.
- Lack of citizenship information for the reported SSN within SSA's record.
  - SSA is more likely to have citizenship information for more recently issued SSNs than for those issued to older customers.
- SSA may not have the most current information for the customer.
  - The SSA CIT/ID verification match only verifies whether a customer's reported citizenship status is consistent with SSA's records.
    - A customer who was a Legal Permanent Resident (LPR) and becomes a naturalized citizen may not have their information correctly reflected by the SSA database.

I. Resolving MEDS Alerts Associated with Mismatches

To resolve unsuccessful matches, HSSs will need to take the following steps based on the MEDS Alert that was generated:

<table>
<tr><th>MEDS Alert #</th><th>Required Steps</th></tr>
<tr><td>9050 or 9051</td><td>1) For non-exempt customers who have not previously provided other acceptable DRA documents, attempt to resolve the mismatch by:
• Checking for typing errors or incorrect entries in CalWIN.
o Correct any errors in the name, date of birth, SSN, or declaration of citizenship fields.
• Verify that the information in CalWIN and MEDS matches the customer's current social security card.

<table>
<tr><th>If the correction is…</th><th>Then…</th></tr>
<tr><td>Made,</td><td>Wait two business days for the SSN validation process and the SSA CIT/ID verification match to repeat.

If the result after correction(s) were made continues to show a mismatch, proceed to step 2.</td></tr>
</table>
</td></tr>
</table>

Not made,	Proceed to Step 2.

2) Attempt to contact the customer by phone to confirm accuracy of the SSN, full name, and date of birth associated with the SSN as well as their intent to declare U.S. citizenship or national status.

If the correction is…	Then…
Made,	Wait two business days for the SSN validation process and the SSA CIT/ID verification match to repeat. If the result after correction(s) were made continues to show a mismatch, proceed to step 3.
Is not made,	Proceed to step 3.

3) Provide the customer with the following forms:
   - MC 239 DRA-6 Information Notice to inform the customer of the SSA mismatch result.
   - For applicants, also include form DHCS 0001.
   - For a beneficiary, also include form DHCS 0002.

The customer will have 90 days to respond to the letter. The 90 days start 7 calendar days after mailing form MC 239-6.

4) Set the Reasonable Opportunity to Provide (ROP) to 97 calendar days from the date the MC 239 DRA-6 was mailed and complete the following steps after the 97th day:

If by the 97th day, the customer…	Then…
Responds by indicating that they have contacted SSA and successfully resolved the mismatch,	• Ask the customer for the changes that were accepted by SSA. • Update CalWIN. • CalWIN will send a transaction to update MEDS. • MEDS will request an SSN validation and SSA CIT/ID verification match. • Wait two days to review the result.

<table>
<tr><td></td><td><table>
<tr><td>Responds by providing the required documents,</td><td>Update CalWIN entries with the updated information.</td></tr>
<tr><td>Does not respond,</td><td>• Reduce the otherwise eligible customer to restricted scope effective the 1st of the following month, provided the 10-day requirement is met.

Exception: Continue full-scope Medi-Cal eligibility if the customer is under the age of 26 or over the age of 50.

• Mail form MC 239 DRA-3 or MC 239 DRA-4 depending on whether the customer has a share of cost (SOC).</td></tr>
</table></td></tr>
<tr><td>9052</td><td>1) Attempt to resolve the mismatch by:
• Reviewing the application to make sure the customer declares to be a U.S. citizen.
• Reviewing MEDS to make sure that those declaring to be a U.S. citizen have a Citizen/Alien indicator code of A, B, N, Q, or 5.
• Correct any inconsistencies.

<table>
<tr><th>If the correction is…</th><th>Then…</th></tr>
<tr><td>Made,</td><td>Wait 2 days for the SSN validation process and SSA CIT/ID verification match to repeat.</td></tr>
<tr><td>Is not made,</td><td>The DRA requirement does not apply because the customer does not declare that he or she is a U.S. citizen.</td></tr>
</table></td></tr>
</table>

Program Impacts:
No other program impacts.

References:
ACWDLs 90-65, 19-23, 21-13

Sunset Date:
This policy will be reviewed for continuance on or by 05/31/2025

Approval for Release:

5-3-22

Rick Wanne, Director
Self-Sufficiency Services

APPENDIX D. REQUEST A BIRTH DATA MATCH via CALWIN

When the 'Display Individual Demographics Summary' window is reached in the CalWIN queue, and there is reason to believe that the beneficiary was born in California, a Birth Record Match request can be initiated from CalWIN by following these steps:

Step	Action
1	Select the AP19 Transaction on the 'Collect Individual Demographics Detail' window – 'Identification Detail' tab.
2	This will bring up the 'Send Forced Add/Suppress Transaction to MEDS' window – 'Forced AP19 to MEDS' tab.
3	The beneficiary should already be pre-populated in the drop-down menu. If not, select the correct person from the drop-down menu.
4	The chosen client's Birth Name should also be pre-populated. If not, enter the information that has been provided by the beneficiary.
5	Enter the Mother's Maiden Name in the 'Last' field, her first name, middle name, if known.
6	Enter the Father's last name, first name, and middle name, if known.
7	Check the 'AP19 – Birth Match Request' checkbox
8	Click the 'Send' button.

MEDS Alerts generated from Birth Match Requests

When a birth record match is initiated, the birth record match process will occur during the next nightly batch update process. When the match was successful or unsuccessful, a response will be received through the CalWIN Interface Subsystem via an alert.

Successful birth record match requests will update MEDS citizenship document information during that same nightly update and will generate the following worker alert message:

9036 REPORTED CA BORN CLIENT MATCHED TO CA BIRTH RECORD ALERT